

		amended to state “Deductions from Gross Settlement Subject to Approval by the Court” since the court has not granted final approval of these deductions. • The Opt Out Form must explain that class members who are also aggrieved employees may not opt out of the PAGA portion of the settlement and still receive their portion of the PAGA penalties. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff’s attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff’s declaration to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date, to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to provide notice of this ruling to the LWDA and Defendant.
4	30-2020-01131297 Villagomez vs. Marcos & Javiers, LLC	The tentative ruling is to continue Plaintiffs Andrea Martinez and Juana Maria Ramirez Angeles’s (collectively, “Plaintiffs”) Motion for Preliminary Approval of Class Action and PAGA Settlement to October 26, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys’ fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys’ fees

		request by amendment to the settlement agreement and the class notice, or Plaintiffs must provide documentation and support for any request higher than this percentage at the final approval stage. Plaintiffs do not provide any information as to how attorneys' fees will be split between the two firms representing plaintiffs. Plaintiff must disclose the proposed split so that the court can approve separate attorneys' fees awards. The Class and PAGA Periods are defined as ending on the date the court grants preliminary approval of this settlement. However, the escalator clause in Paragraph 4(F) of the settlement agreement provides for the option to either increase the settlement amount or change the Class and PAGA Periods such that some of the class members and aggrieved employees might no longer be included in the settlement. This court, however, will not approve a settlement that results in class members and aggrieved employees being told they are in the settlement but later being told they are not included in the settlement. Thus, defendants will have to either rely on or take another look at its estimated number of class members and aggrieved employees or select the increased payment option. If the parties want to preserve the option calling for a reduction of the Class and PAGA Periods, rather than just an increase in the settlement amount, they must determine if the escalator clause applies before sending out the class notice and have the class notice include the adjusted end date and not be sent to non-participants. The class notice must be corrected as follows: • On Page 2 of the class notice, the parenthetical “(“Defendants” is used herein as a placeholder)” should be amended to state: “(collectively, “Defendants”).” • On Page 3 of the notice, the phrase “Court Approved Deductions from Gross Settlement,” should be amended to state “Deductions from Gross Settlement Subject to Approval by the Court” since the court has not granted final approval of these deductions. • On Page 5 of the class notice, the definition of “Released Parties” must match the definition in Paragraph 3 of the settlement agreement. Plaintiffs shall provide notice of this ruling to the LWDA and Defendants.
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